

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

11 CIV. 1944

Felix Rivers 441-10-01466

OFFICE

(In the space above enter the full name(s) of the plaintiff(s).)

MAR 15 2 11 34

COMPLAINT

under the

Civil Rights Act, 42 U.S.C. § 1983

v.

Jury Trial: Yes ☒ No ☐
(check one)ant No. 1 N.Y.P.D Commissioner Ray Kellyant No. 2 Queens County D.A Richard Brownant No. 3 N.Y.P.D 100 & 101 Precinct fire arm
& narcotics Squad.

ant No. 4

ant No. 5

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. No addresses should be included here.)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name Felix Rivers
ID # 441-10-01466
Current Institution O.B.C.C
Address 1600 hazen st East Elmhurst NY 11370

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1

Name RAY Kelly Shield # _____
 Where Currently Employed N.Y.P.D. headquarters
 Address 1 Police Plaza N.Y. N.Y. 10038

Defendant No. 2

Name Richard Brown Shield # _____
 Where Currently Employed District Attorney
 Address 125-01 Queens Blvd. Long Gardens NY 11415

Defendant No. 3

Name 100 Precinct Narcotics & Forensic Squad Shield # _____
 Where Currently Employed N.Y.P.D.
 Address 92-24 Rockaway Beach Boulevard
Far Rockaway N.Y. 11693

Defendant No. 4

Name 101 Precinct Narcotics & Forensic Squad Shield # _____
 Where Currently Employed N.Y.P.D.
 Address 16-12 Mott Ave Far Rockaway N.Y. 11694

Defendant No. 5

Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not give any legal arguments or cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur? none

B. Where in the institution did the events giving rise to your claim(s) occur? no where

C. What date and approximate time did the events giving rise to your claim(s) occur? 2-4-10
at 8 or 8:30.

D. Facts: My home got raided on February 1, 2010. (because my phone was tap / being recorded by N.Y.P.D. illegally) I didn't receive any search warrant or given a reason why my home was raided it's now March 11 2011 and I still don't have or know the reason why or what cause my phone to be recorded or why my home was raided by 100 & 101 percent. now the D.A. isn't given up any information on what my rights has been violated and they didn't give me any reason why I've been arrested on charges that I have no idea about or any information about the charges they have against me, they violated my rights to a speedy trial which I told my lawyer to do back in April 2010. N.Y.P.D. firearm & narcotics squad took all my phone's from my home, broke up my step son's bed and mines. They violated my Amendment's and my constitutional rights.

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. pain & suffering, emotional stress, traumatize, mentally ill (as well as my wife). I take Serenol 200 milligrams 60 to mental health doctor's as well as psyc doctor's for counseling I take the medication 2 times a day morning and at night. I'm damage mentally, I wake up in cold sweats two time to time.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act of 1995, 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?
 Yes ☐ No ☒

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s). none

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ☐ No ☐ Do Not Know ☐

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ☐ No ☐ Do Not Know ☐

If YES, which claim(s)? _____

D. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose not cover some of your claim(s)?

Yes ☐ No ☐ Do Not Know ☐

If YES, which claim(s)? _____

E. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ☐ No ☐

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ☐ No ☐

F. If you did file a grievance, about the events described in this complaint, where did you file the grievance? _____

1. Which claim(s) in this complaint did you grieve? _____

2. What was the result, if any? _____

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

G. If you did not file a grievance, did you inform any officials of your claim(s)?

Yes _____ No _____

1. If YES, whom did you inform and when did you inform them? _____

2. If NO, why not? _____

I. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies.

My rights wasn't read to me or I ~~se~~ haven't signed any paper work with my rights or it ~~and~~ they never showed me a paper with my rights or it, I've been lated up ~~to~~ since since February 4 2010 and I'm still lated up awaiting to return to court on April 13 2011.

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the court to do for you. I want my things replace and I would like to sue for 10 million dollars for the violation of my rights as an america citizen.

VI. Previous lawsuits:

A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes _____ No ☒

B. If your answer to A is YES, describe each lawsuit in questions 1 through 7 on the next page. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to this previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (for example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

D. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?
Yes _____ No _____

E. If your answer to D is YES, describe each lawsuit in questions 1 through 7 on the next page. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to this previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit: _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (for example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

Signed this 11 day of March, 2011. I declare under penalty of perjury that the foregoing is true and correct.

Signature of Plaintiff

Felix Rivera

Inmate Number

44110-01466

Mailing address

1660 Hazen St

East Elmhurst NY 11370

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 11 day of March, 2011, I will deliver this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Felix Rivera

REV. 09/04